FOOTPATHS

# CLAIMING THE RIGHT TO WALK

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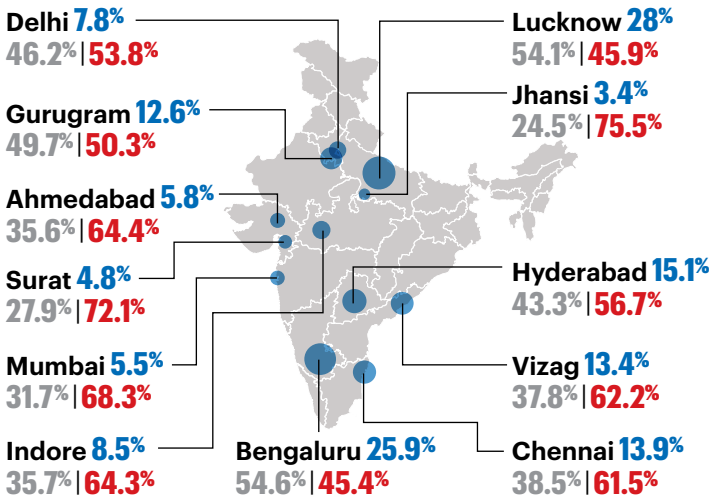
Imagine having to invoke the Constitution to claim the right to walk. This is where India finds itself today. In a landmark judgment on June 19, the Supreme Court held that the right to walk on safe, demarcated footpaths flows from Articles 19 and 21 of the Constitution, which constitute the fundamental right to freedom. The court also declared that pedestrian rights are 'primary' and must take precedence over motorised traffic.

The verdict arose from the 2014 road-accident death of five-year-old Maniyar Saheb, who was hit by a tanker while crossing the road in Rayadurga, Andhra Pradesh. What began as a compensation dispute grew into a larger question of fundamental rights.

Over the past 15 years, many cities have tried to rethink the walkability issue. Starting in 2012, Bengaluru, Chennai and Pune piloted urban street design programmes. But they are few and far between, and have done little to scale up. The SC order, then, comes not a moment too soon. Now, every local authority has an enforceable legal duty to construct and maintain safe footpaths. A few cities have swung into action with special drives. Andhra Pradesh has gone a step further, approving a Pedestrian Safety and Universal Accessibility Policy 2026, on August 8.

## FULL OF HURDLES

**A May 2026 study by the GeoAI startup Neural City lays bare the state of footpaths across 12 Indian cities**




● Share of assessed 100m footpath units that were continuously walkable

**% of assessed 100m footpaths that are:**
● Clear (usable)
● Obstructed (not usable)




AI Image

**13.2%**

**OR ONLY 379 OF 2,876 ASSESSED 100M FOOTPATH UNITS WERE CONTINUOUSLY WALKABLE ACROSS 12 CITY SAMPLES IN A MAY 2026 STUDY** (*see map*)